

PRIVATE COMPANY LIMITED BY SHARES

NOTICE OF WRITTEN RESOLUTION

OF

CAELIUS MIDCO LIMITED

(Registered No: 09928345)

(the "Company")

THURSDAY



Notice is hereby given that in accordance with Chapter 2 of Part 13 of the Companies Act 2006, on **3 FEBRUARY** 2016 the following resolutions were passed by the sole shareholder of the Company by way of written resolution

ORDINARY RESOLUTION

- 1 "THAT in substitution for any existing power under section 551 of the 2006 Act and without prejudice to the exercise of any such authority prior to the date hereof, the Directors are authorised generally (subject to the terms of the investment agreement to which the Company is a party dated on or around the date hereof (the "Investment Agreement")) to allot without the authority of the Company in general meeting up to a maximum of £20,006 61022 in nominal amount of shares of the Company (comprising 15,960 A Ordinary Shares of £1 00 each, 4,040 B Ordinary Shares of £1 00 each and 1,322,044 Preference Shares of £0 000005 each) at any time or times from the date of adoption of these Articles until the date occurring five years after such date. The aforesaid authority may be revoked or varied by the Company in general meeting and may be renewed by the Company in general meeting for a further period not exceeding five years. The Company may make any offer or agreement before the expiry of this authority which would or might require relevant securities to be allotted after this authority has expired and the Directors (subject to the terms of the Investment Agreement) may allot relevant securities in pursuance of any such offer or agreement notwithstanding the expiry of this authority. In this paragraph, references to the allotment of shares shall include the grant of rights to subscribe for, or to convert any security into shares."

SPECIAL RESOLUTION

"THAT

- 2 the regulations contained in the document attached hereto and for the purposes of identification marked A are hereby approved and adopted as the articles of association of the Company in substitution for and to the exclusion of all existing articles of association of the Company, and
- 3 the one issued ordinary share of £1 00 in the Company be and hereby is reclassified as one A ordinary share of £1 00 having the rights and being subject to the restrictions contained in the articles of association adopted pursuant to resolution 2 "

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THE COMPANIES ACT 2006
PRIVATE COMPANY LIMITED BY SHARES

ARTICLES OF ASSOCIATION

of

CAELIUS MIDCO LIMITED

Registered No. 09928345

Incorporated in England and Wales on 23 December 2015

Adopted by special resolution on 3 FEBRUARY 2016

PRIVATE COMPANY LIMITED BY SHARES

ARTICLES OF ASSOCIATION

of

CAELIUS MIDCO LIMITED

(the "Company")

CONSTITUTION

- 1 The Company is a private company within the meaning of section 4(1) of the Companies Act 2006 (the "2006 Act") established subject to the provisions of the 2006 Act including any statutory modification or re-enactment thereof for the time being in force and of the Regulations contained in The Model Form Articles for private companies limited by shares as set out in The Companies (Model Articles) Regulations 2008 (Statutory Instrument 2008 No 3229) (the "Model Articles") with the exception of articles 14, 17 to 20 (inclusive), 22(2), 23, 26, 38, 41, 44(1), 44(2), 52 and 53 of the Model Articles, and of any other articles which are inconsistent with the additions and modifications hereinafter set forth
- 2 The liability of the members is limited to the amount, if any, unpaid on the shares held by them.
- 3 In accordance with the 2006 Act the objects of the Company shall be unrestricted
4. The name of the Company may be changed by resolution of the Directors

INTERPRETATION

- 5 In these Articles, unless the context otherwise requires, words and expressions shall bear the meaning ascribed to them in Schedule 1 of these Articles and the Schedules shall be part of and construed as one with these Articles.

SHARE CAPITAL

- 6 The share capital of the Company as at the date of adoption of these Articles is £20,006 61022 divided into 15,960 A Ordinary Shares, 4,040 B Ordinary Shares and 1,322,044 Preference Shares

RIGHTS ATTACHING TO THE SHARES

- 7 The rights and restrictions attaching to the shares are as follows.

71 INCOME

- 711 Any profits which the Directors lawfully determine to distribute to the A Ordinary Shareholders in respect of any financial year, after declaration of any B Share Dividends, shall be distributed amongst the

A Ordinary Shareholders (in respect of their A Ordinary Shares only) pro rata and pari passu according to the number of A Ordinary Shares held by each of them

- 7.1.2 In respect of any profits which the Directors lawfully determine to distribute in respect of any financial year, the B Ordinary Shares shall confer on the B Ordinary Shareholders the right to receive in respect of each B Ordinary Share a preferential cash dividend at the rate per annum equal to the Prescribed Rate multiplied by the B Share Subscription Amount. The dividends payable in accordance with this Article shall be referred to herein as the "B Share Dividends"
- 7.1.3 The B Share Dividends shall, with effect from the date of issue of the B Ordinary Shares (the "Start Date"), accrue from day to day on an annual basis (on the basis of a 365 or 366 day year as appropriate) (each a "B Share Dividend Period") The payment date (or dates) of the B Share Dividends shall be determined by the Board (with the prior approval of the board of directors of Topco)
- 7.1.4 Subject to the availability of distributable profits of the Company and the approval of the Board (with the prior approval of the board of directors of Topco), the B Share Dividends shall be payable out of the distributable profits of the Company without any resolution of the Company in general meeting
- 7.1.5 No dividend may be paid in respect of any Preference Share.

7.2 CAPITAL AND ASSETS

7.2.1 Subject to Articles 7.2.2 and 7.2.3

- (a) the capital and assets of the Company on a winding-up or other return of capital available for distribution, and
- (b) the proceeds of any Sale,

shall be distributed amongst the Ordinary Shareholders as follows.

- (i) in paying to each holder of the B Ordinary Shares an amount equal to the B Share Subscription Amount per B Ordinary Share and any B Share Dividends accrued but unpaid on the B Ordinary Shares held by the relevant holder and, if there is a shortfall of proceeds available to satisfy such payments in full, the proceeds shall be shared among the holders of the Ordinary Shares pro rata according to the number of Ordinary Shares held;
- (ii) from the balance (if any) of the proceeds remaining after the payment of those sums referred to in Article 7.2.1(i), in paying this to the holders of the A Ordinary

Shares pro rata according to the number of A Ordinary
Shares held

For the avoidance of doubt, to the extent there is more than one distribution to be paid by the Company, the holders of B Ordinary Shares shall only be entitled to a payment in accordance with Article 7 2 1(i) once, following which all further distributions shall be paid to the holders of A Ordinary Shares. For the avoidance of any doubt, subject always to Article 7 5, the only value which a B Ordinary Share shall be entitled to upon its realisation shall be (and shall not exceed) the amount determined and payable in accordance with and pursuant to the foregoing provisions of this Article

7 2 2 Upon a Sale, those Ordinary Shares not acquired by the relevant purchaser(s) shall not be entitled to any allocation of proceeds pursuant to Article 7 2 1

7.2 3

(a) In a winding-up of the Company from the assets of the Company available to the holders of shares the holders of Preference Shares (in respect of their Preference Shares only) shall receive in priority to any payment in respect of any other share an amount per Preference Share equal to (i) £1 (the "Principal Value") plus (ii) a sum equal to 8% per annum which shall be deemed to accrue on the Outstanding Value (as defined below) from day to day on the basis of a 365 day year (or a 366 day year in the case of a leap year) from the date of issue of the Preference Share until the earliest of (and including) the date of redemption of the relevant Preference Share and the date of winding-up of the Company. The Premium (if any) which has accrued as at each anniversary of the date of adoption of these Articles will be compounded with the Principal Value outstanding as at such anniversary (and such Principal Value plus any such compounded sums from time to time shall be the "Outstanding Value"). The total sum calculated under (ii) (including any compounded sums (but excluding the Principal Value)) shall be deemed to be the "Premium" for the purpose of these Articles. Upon payment of the amounts referred to in this Article 7 2 3(a) the Preference Shares shall not be entitled to any further amount of capital or distribution. If the assets of the Company available to shareholders are less than the amount which would be due to all Preference Shares under the foregoing provisions of this Article 7 2 3(a) (the "Preference Proceeds"), those Preference Proceeds will be distributed amongst the Preference Shareholders pro rata by reference to the number of Preference Shares held

(b) In the event of a Sale, the holders of Preference Shares (in respect of their Preference Shares only) shall receive from the

proceeds of the Sale available in respect of the shares being sold in priority to any other share an amount per Preference Share equal to the Principal Value plus the Premium (to be calculated up to (and including) the date of completion of the Sale) and shall not be entitled to any further participation in the proceeds of the Sale. If the proceeds of the Sale or the Drag Sale available in respect of the share being sold are less than the amount which would be due to all Preference Shares under the foregoing provisions of this Article 7.23(b) (the "Preference Proceeds"), those Preference Proceeds will be distributed amongst the Preference Shareholders pro rata by reference to the number of Preference Shares held.

- (c) As between the holders of Preference Shares, the assets or proceeds due to them under Article 7.23(a) or (b) (as the case may be) shall be allocated across all of the Preference Shares *pari passu* and *pro rata* to the number of Preference Shares held by each holder.

7.3 VOTING, CLASS CONSENT MATTERS AND DISENFRANCHISEMENT

Voting

7.3.1 Subject to Articles 7.3.3 and 7.3.4-7.3.7, the Ordinary Shares shall entitle any holder thereof to receive notice of, and to attend and speak, at any general meeting and on a poll each Ordinary Share shall carry one vote,

- (a) the A Ordinary Shareholders (as a class) shall be entitled to cast 100% of the voting rights that are not capable of being cast by the B Ordinary Shareholders pursuant to paragraph (b) below and where there is more than one holder of A Ordinary Shares each holder shall be entitled to cast that proportion of the voting rights capable of being cast by the A Ordinary Shareholders that his holding of A Ordinary Shares bears to the total number of A Ordinary Shares in issue, and
- (b) save where a Leaver or Permitted Transferee of a Leaver holds any interest in any B Ordinary Share, each B Ordinary Shareholder shall be entitled to cast 5% of the total number of voting rights capable of being cast by all holders of Ordinary Shares irrespective of the number of B Ordinary Shares held by such B Ordinary Shareholder. The maximum number of B Ordinary Shareholders shall be four at any one time.

Every vote at every general meeting of the Company shall be taken by way of a poll only.

7.3.2 Preference Shares shall not entitle the holder thereof to attend or vote at any general meeting of the Company.

Class Consent

- 7.3.3 The only acts or omissions of the Company which will require a class consent of the B Ordinary Shares shall be any deletion or variation of Article 7.3.1(b) (save that no class consent shall be required where such deletion or variation results from the operation of clause 18 of the Investment Agreement or upon any interest in the B Ordinary Shares being held by Leavers or Permitted Transferees of Leavers), and such class consent of the B Ordinary Shares may be given by the holders of a majority of the B Ordinary Shares then in issue (excluding any B Ordinary Shares in which any interest is held by any Leaver or any Permitted Transferee of any Leaver or to which Article 7.3.5 applies)

Disenfranchisement

- 7.3.4 The provisions of Article 7.3.5 shall apply:

- (a) if, at any time without Investor Director Consent, any holder of B Ordinary Shares has transferred shares or any interest therein or any other security or interest therein in any member of the Group therein in breach of any provision of these Articles, the Topco Articles or the Nominee Agreement (as defined in the Investment Agreement) or the B Loan Note Transfer Agreement (as defined in the Investment Agreement);
- (b) if, at any time without Investor Director Consent, any holder of B Ordinary Shares is in material breach of any provision of these Articles and/or the Investment Agreement and/or the Nominee Agreement and/or the B Loan Note Transfer Agreement or any former holder of B Ordinary Shares is in material breach of any provision of the Investment Agreement

- 7.3.5 If any of the circumstances stated in Article 7.3.4 have occurred in respect of the B Ordinary Shareholder referred to Article 7.3.4 (the "Defaulting Person"), then, unless otherwise agreed in writing by the holder of the majority of the A Ordinary Shares (with Investor Director Consent)

- (a) the shares in which such Defaulting Person holds any legal or beneficial interest or to which he is entitled pursuant to the Nominee Agreement or otherwise, and
- (b) any shares (or interests therein) formerly held by such Defaulting Person which have been transferred either in breach of the provisions of these Articles or the Nominee Agreement,

shall cease to entitle the holder of such shares (or any proxy, attorney or other representative) to receive notice of or to attend and vote (whether on a show of hands or on a poll) at any general meeting or at any separate class meeting of the Company (and as such these shares will be deemed to be non-voting in respect of any written resolutions,

written class consents or any other written consents required in respect of a member's equity investment in the Group) or (u) be entitled to receive any further securities issued by way of rights issue (or otherwise) from the date of any breach referred to at Article 734(a) or 734(b). Each holder of the shares referred to in the foregoing provisions of this Article 735 hereby appoints as his attorney and agent any person nominated by the holders of the majority of the A Ordinary Shares to take any actions in his name and on his behalf to implement all or any of the provisions of this Article 735.

736. The provisions of Article 735 shall continue to apply for so long as such breach subsists

74 REDEMPTION OF PREFERENCE SHARES

- 741 Subject to the 2006 Act and of every other statute for the time being in force concerning companies and affecting the Company, the Preference Shares may be redeemed in full at any time after the day following the date of adoption of these Articles by the Company giving notice of the redemption to the relevant holder(s) of Preference Shares (the "Redemption Notice"). Those shares shall be redeemed immediately following the issue of the Redemption Notice(s) by the Company (the "Redemption Date")

- 742 On any Redemption Date the Company shall pay to each registered holder of Preference Shares the amount payable in respect of such redemption. On receipt of that amount, each such holder shall surrender to the Company the certificate for the shares that are to be redeemed (or an indemnity in a form reasonably satisfactory to the Board in respect of any lost share certificate) to be cancelled. If any certificate (or indemnity) so surrendered includes any shares that are not redeemable at that time, the Company shall issue a new share certificate for the balance of the shares not redeemable to the holder. If there is more than one holder of Preference Shares, any redemption shall be made among such holders pro rata (as nearly as possible) to their respective holdings of Preference Shares

75 CONVERSION OF B ORDINARY SHARES

- 751 On a Conversion Event, each of the B Ordinary Shares held by the relevant Leaver (or any Permitted Transferee thereof) or the Nominee (or any Permitted Transferee thereof) on his behalf in issue on the Conversion Event shall be automatically converted on such date into Deferred Shares (with such nominal value which shall be equal to the nominal value of a B Ordinary Share) on a one for one basis and the holder of such converted B Ordinary Shares shall cease to be entitled to any of the accrued or future rights set out in these Articles (including but not limited to any of the accrued or future rights in respect of income and/or capital)

- 7.5.2 The Conversion shall be automatic and mandatory and shall not require further authority than is contained in these Articles
- 7.5.3 On the date on which Conversion takes place or forthwith thereafter, the holder of Deferred Shares resulting from the Conversion shall send to the Company his share certificate in respect of the B Ordinary Shares converted. No share certificate will be issued in respect of the Deferred Shares
- 7.5.4 The Company shall on the Conversion Date or forthwith thereafter enter the holder of the B Ordinary Shares so converted in the register of members of the Company as the holder of Deferred Shares (if appropriate)
- 7.5.5 The creation or issue of Deferred Shares shall be deemed to confer irrevocable authority on the Board at any time after their creation or issue to appoint any person (with Investor Consent) to execute or give on behalf of the holder of those shares a transfer of them to such person or persons as the Company or the Board may determine

7.6 DEFERRED SHARES

The Deferred Shares shall have those rights detailed in Schedule 2

7.7. EVENT OF DEFAULT

- 7.7.1 Each and every time there is an Event of Default (as defined in the Topco Articles) and a written notice thereof has been served upon Topco by the holders of the majority of the A ordinary shares in Topco (the "Topco A Shares").
- (a) each member shall exercise all and any voting rights (including, without limitation, voting on any written resolution of the Company's shareholders or voting at any class meeting or on any class consent or written class resolution) attaching to the shares held by him as directed in writing by the holders of the majority of the Topco A Shares, and/or
 - (b) subject to clause 18.5 of the Investment Agreement (if applicable), each member (other than holders of A Ordinary Shares) shall not be entitled to receive (without Investor Director Consent) any further securities in the Company issued by way of rights issue or otherwise, and/or
 - (c) new securities may be issued by the Company (with Investor Director Consent), ranking ahead of or pari passu with any securities of any member of the Group which are already in issue, and amendments to these Articles may be made in respect thereof (with Investor Director Consent)

Each member (other than any holder of A Ordinary Shares) hereby appoints as his attorney and agent any person nominated by the holders of the majority of the Topco A Shares to take any actions in his name and on his behalf to implement all or any of the provisions of this Article 7.7. For the avoidance of doubt, the foregoing provisions of this Article 7.7 shall apply without prejudice to any requirement for approvals under clause 8 of the Investment Agreement (save that under no circumstances shall it be necessary to obtain any approval of any holder of shares (other than the holders of the majority of the Topco A Shares) under such clause or otherwise in order to serve the written notice by the Topco A Shareholders. Subject to any further Events of Default arising, the provisions of this Article 7.7 shall

- (a) in the case of the circumstances at paragraph (i) of the definition of Event of Default existing, continue to apply until the Loan Notes (as defined in the Investment Agreement) required to be redeemed or any interest due has been paid,
- (b) in the case of the circumstances at paragraph (ii), (iii) or (iv) of the definition of Event of Default existing, continue to apply for so long as such breach or failure subsists and has not been rectified to the reasonable satisfaction of the holders of the majority of the Topco A Shares

LIEN

- 8 The Company shall have a first and paramount lien on every share for all moneys (whether presently payable or not) payable at a fixed time or called in respect of that share and the Company shall also have a first and paramount lien on all shares standing registered in the name of a single person or in the name of any person jointly with another or others for all monies presently payable by him or any of them or his estate or their estates to the Company. The Directors may at any time declare any share to be wholly or in part exempt from the provisions of this Article.

ISSUE OF SHARES

- 9 **Issues of Shares**
- 9.1 Any shares may be issued on the terms that they are, or at the option of the Company or the holder are liable, to be redeemed and the Board (subject to the terms of the Investment Agreement and the Finance Documents) shall be authorised to determine the terms, conditions and manner of redemption of such shares
- 9.2 Subject to the provisions of the 2006 Act and of every other statute for the time being in force concerning companies and affecting the Company, the Board (subject to the terms of the Investment Agreement) may offer, allot, issue, grant options or rights over or otherwise dispose of any shares in the Company to such persons, at such times and for such consideration and upon such terms and conditions and with such preferred, deferred or other special rights or restrictions whether in regard to dividend, voting, return of capital or otherwise as the Board (subject to the terms of the Investment Agreement)

may determine, but so that no shares shall be issued at a discount

- 9.3 For the purposes of Section 551 of the 2006 Act, the Board (subject to the terms of the Investment Agreement) is authorised generally and unconditionally to allot without the authority of the Company in general meeting up to a maximum of £20,006 61022 in nominal amount of shares of the Company at any time or times from the date of adoption of these Articles until the date occurring five years after such date. The aforesaid authority may be revoked or varied by the Company in general meeting and may be renewed by the Company in general meeting for a further period not exceeding five years. The Company may make any offer or agreement before the expiry of this authority which would or might require relevant securities to be allotted after this authority has expired and the Board (subject to the terms of the Investment Agreement) may allot relevant securities in pursuance of any such offer or agreement notwithstanding the expiry of this authority. In this Article, references to the allotment of shares shall include the grant of rights to subscribe for, or to convert any security into shares.
- 9.4 In accordance with Section 570 of the 2006 Act, Section 561(1) of the 2006 Act shall be excluded from applying to the allotment of equity securities (as defined in Section 560 of the 2006 Act)
- 9.5. Notwithstanding any other provisions of these Articles, no shares shall be allotted to any party not bound by the Investment Agreement unless that party has first entered into any tax elections and any other relevant regulatory documentation required in any relevant jurisdiction if required to do so by a Director and a deed of adherence if so required by the Investment Agreement
10. The Company shall not be bound by or be compelled in any way to recognise (even when having notice thereof) any equitable, contingent, future or partial interest in any share or any interest in any fractional part of a share or (except only as otherwise provided by these Articles or by law) any other rights in respect of any share except an absolute right to the entirety thereof held by the registered holder. The Company shall however be entitled to register trustees as such in respect of any shares

TRANSFER OF SHARES

- 11 The Directors (acting in accordance with the terms of the Investment Agreement) shall register any transfer of shares made in accordance with the provisions of Article 12. There shall be no transfer of B Ordinary Shares without Investor Consent. Save as aforesaid, the Board may, in their absolute discretion and without assigning any reason therefore, decline to register any transfer of any shares, whether or not such shares are fully paid.
- 12 Subject to such of the restrictions of these Articles as may be applicable, any member may transfer all or any of his shares in writing in any usual or common form or in any other form which the Directors may approve. The instrument of transfer shall be executed by or on behalf of the transferor and (except in the case of (i) fully paid shares and (ii) the subscriber shares) by or

on behalf of the transferee and the transferor shall remain the holder of the shares and as such a member of the Company until the name of the transferee is entered in the Register of Members in respect thereof

B ORDINARY SHARE DRAG-ALONG

13 B Ordinary Share Drag-Along

13 1 In the event that

13 1 1 save where a B Ordinary Shareholder is a Leaver in which case the terms of Article 7 5 shall apply, any B Ordinary Shareholder (the "**Transferring B Transferor**") agrees to sell or transfer any of the shares held by it or on its behalf in Topco to any person, and/or

13 1 2 the A Ordinary Shareholders are proposing to sell their A Ordinary Shares in the Company to a third party (the "**Purchaser**") (other than pursuant to a bona fide re-organisation of the Group) (an "**A Share Sale**"),

(each a "**Relevant Transfer**"),

the Company, acting as agent for the A Ordinary Shareholder(s), shall (unless otherwise directed by the A Ordinary Shareholder(s)) serve a notice (each a "**Compulsory Transfer Notice**") on the Transferring B Transferor (where Article 13 1 1 applies) and each B Ordinary Shareholder (in the event of an A Share Sale) (each being a "**Relevant B Shareholder**") requiring it to sell all (but not only some) of its B Ordinary Shares to the A Ordinary Shareholder(s) (and/or such person(s) identified by the A Ordinary Shareholder(s) in the Compulsory Transfer Notice, which may be the Purchaser in the case of an A Share Sale) (each a "**Transferee**") for the B Share Subscription Amount per B Ordinary Share, which sale shall take place on the same date as the date of the Relevant Transfer (or such other date specified by the Company) (the "**Compulsory Transfer Completion Date**")

13 2 The Transferee(s) shall complete the purchase of all B Ordinary Shares in respect of which a Compulsory Transfer Notice has been given on the Compulsory Transfer Completion Date

13 3 If a Relevant B Shareholder in respect of whom a Compulsory Transfer Notice has been served has not on or before the Compulsory Transfer Completion Date transferred his B Ordinary Shares to the Transferee(s) against payment of the price therefor

13 3 1 the Relevant B Shareholder shall be deemed to authorise any Director or any other person nominated by any Investor Director at Topco to execute and deliver on his behalf any necessary transfer in favour of the Transferee(s),

13 3 2 the Company shall receive the consideration in respect of such B Ordinary Shares, and

- 13 3 3 the Company shall (subject to the transfer being duly stamped to the extent applicable) cause the name of the Transferee(s) to be entered into the Register of Members as the holder of the relevant B Ordinary Shares

The Company shall hold the consideration in trust for each Relevant B Shareholder but shall not be bound to earn or pay interest thereon. The issue of a receipt by the Company for the consideration shall be a good receipt for the price for the relevant shares. The Company shall apply the consideration received by it in payment to each Relevant B Shareholder against delivery by that Relevant B Shareholder of the certificate in respect of the shares or an indemnity in respect of the same in a form acceptable to the Company. After the name of the Transferee(s) has been entered in the Register of Members in purported exercise of the aforesaid powers the validity of the proceedings shall not be questioned by any person.

- 13 4 Any B Ordinary Share which is transferred to an A Ordinary Shareholder in accordance with this Article 13 shall immediately following such transfer be automatically converted into an A Ordinary Share on a one for one basis
- 13 5 For the avoidance of doubt, nothing in these Articles shall prevent the issue of a new Compulsory Transfer Notice immediately prior to or following the withdrawal of an existing Compulsory Transfer Notice in which case such newly served notice shall supersede and revoke any earlier such notice

GENERAL MEETINGS

- 14 No business shall be transacted at any general meeting unless a quorum of members is present at the time when the meeting proceeds to business. Save as herein otherwise provided, one member present in person or by proxy or, if corporations, by representatives duly authorised, one of whom shall be required to be an A Ordinary Shareholder, shall be a quorum
- 15 If a quorum is not present within half an hour of the time appointed for a general meeting the meeting, if convened on the requisition of members, shall be dissolved, in any other case it shall stand adjourned to such day and at such time and place as the Directors may determine, and if at the adjourned meeting a quorum is not present within half an hour from the time appointed for the meeting the members present shall be a quorum.
- 16 A resolution in writing (i) in respect of the passing of an ordinary resolution, signed by the holders of a simple majority of the total Voting Rights of 'eligible members' of the Company, or (ii) in respect of the passing of a special resolution, signed by the holders of a 75% majority of the total Voting Rights of 'eligible members' of the Company, in each case shall be as valid and effectual as if it had been passed at a general meeting of the Company duly convened and held. Any special resolution to be passed as a written resolution must state on the face of the resolution that it is to be passed as a special resolution. Any written resolution may consist of several documents in the like form each signed by one or more of the members or their duly appointed attorneys or representatives and the signature in the case of a

corporation which is a member shall be sufficient if made by a director or the secretary thereof or by its duly appointed attorney(s) or representative(s)

17. The vote on every resolution proposed at every general or class meeting shall be taken and determined by way of a poll
18. No resolution not previously approved by the Directors shall be moved by any member other than a Director at a general meeting unless the member intending to move the same shall have left a copy thereof with his name and address at the Registered Office of the Company three clear days prior to such meeting
19. A notice of every general meeting shall be given to every member whether or not he shall have supplied to the Company an address within the United Kingdom for the giving of notices.

DIRECTORS

20. Unless and until otherwise determined by ordinary resolution of the Company, the minimum number of Directors shall be one and there shall be no maximum number. A sole Director shall have all the power and authority vested in "the Directors" in terms of these Articles. The quorum for the transaction of the business of the Directors may be fixed by the Directors and unless so fixed at any other number shall be two (unless there is a sole Director, in which case the quorum shall be one). A person who holds office only as an alternate Director shall, if his appointer is not present, be counted in the quorum
21. A Director shall not be required to hold shares of the Company in order to qualify for office as a Director, but he shall be entitled to receive notice of and attend and speak at all general meetings of the Company or of any class of members of the Company
22. A Director who is in any way, whether directly or indirectly, interested in an actual or proposed transaction or arrangement with the Company shall declare the nature and extent of his interest at a meeting of the Directors in accordance with section 177 and/or section 182 of the 2006 Act. Subject to such disclosure as aforesaid a Director may vote in respect of any contract or proposed contract or arrangement in which he is interested and if he does so vote his vote shall be counted and he may be counted in ascertaining whether a quorum is present at any meeting at which any such contract or proposed contract or arrangement shall come before the Directors for consideration and may retain for his own absolute use and benefit all profits and advantages accruing to him therefrom. For the purposes of this Article
 - (a) a general notice given to the Directors that a Director is to be regarded as having an interest of the nature and extent specified in the notice in any transaction or arrangement in which a specified person or class of persons is interested shall be deemed to be a disclosure that the Director has an interest in any such transaction of the nature and extent so specified, and

- (b) an interest of which a Director has no knowledge and of which it is unreasonable to expect him to have knowledge shall not be treated as an interest of his.
- 23 In respect of any situation in which a Director has, or may have, a direct or indirect interest that conflicts, or possibly may conflict, with the interests of the Company, the Directors may authorise the matter, on such terms as they may determine, provided that
- (a) the Director has declared the full nature and extent of the situation to the Directors, and
 - (b) it is proposed (either by the Director in question or another) that the Directors authorise the matter and upon the resolution to do so the requirement for the quorum is met without counting the Director in question and the resolution was agreed to without such Director voting or would have been agreed to if that conflicted Director's vote had not been counted
- 24 Any terms determined by the Directors under Article 23 may be imposed at the time of authorisation or may be imposed subsequently and may include (without limitation)
- (a) the exclusion of the interested Director in question from all information and discussion by the Company of the situation in question, and
 - (b) (without prejudice to the general obligations of confidentiality) the application to the interested Director of a strict duty of confidentiality to the Company for any confidential information of the Company in relation to the situation in question
- 25 Any authorisation given by the Directors under Article 23 may provide that, where the interested Director obtains (other than through this position as a Director of the Company) information that is confidential to a third party, he will not be obliged to disclose it to the Company or to use it in relation to the Company's affairs in circumstances where to do so would amount to a breach of that confidence
- 26 The Directors may dispense with the keeping of attendance records for meetings of the Directors or committees of the Directors Regulation 15 of the Model Articles shall be modified accordingly
- 27 The office of a Director shall be vacated
- (a) if he becomes bankrupt or suspends payment of or compounds with his creditors,
 - (b) if he becomes of unsound mind or a patient for the purpose of any statute relating to mental health or otherwise incapacax,
 - (c) if (not being a Director holding executive office as such for a fixed

term) by notice in writing to the Company he resigns his office,

- (d) if he is prohibited by law from being a Director or ceases to be a Director by virtue of the 2006 Act or any statutory modification or re-enactment thereof,
- (e) if he, not being an director of the Company who is an Investor Director (as defined in the Topco Articles) of Topco, is removed from office (i) by notice in writing signed by all his Co-Directors, or (ii) by ordinary resolution of the Company's shareholders and served upon him; and/or
- (f) if he shall for more than six months have been absent without permission of the Directors from meetings of the Directors held during that period and a majority of the other Directors resolve that his office be vacated

28 Subject to the terms of the Investment Agreement, the Directors shall have power at any time, and from time to time to appoint any person to be a Director of the Company either to fill a casual vacancy or as an addition to the existing Directors

29 Subject to the terms of the Investment Agreement, the ordinary remuneration (if any) of the Directors shall from time to time be determined by an ordinary resolution of the Company and shall (unless such resolution otherwise provides) be divisible among the Directors as they may agree or, failing agreement, equally except that any Director who shall hold office for part only of the period in respect of which such remuneration is payable shall be entitled only to rank in such division for such proportion of remuneration as relates to the period during which he has held office. The Directors may repay to any Director all such reasonable expenses as he may properly incur in attending and returning from meetings of the Directors or of any committee of the Directors or general meetings of the Company or any class of members of the Company or otherwise in or about the business of the Company. In the event of any Director necessarily performing or rendering any special duties or services to the Company outside his ordinary duties as a Director the Directors may, if so authorised by an ordinary resolution of the Company, pay such Director special remuneration and such special remuneration may be by way of salary, commission, participation in profits or otherwise as may be arranged

30 Subject to the terms of the Investment Agreement, the Directors may from time to time appoint one or more of their number to an executive office (including that of Managing Director, Deputy or Assistant Managing Director, Manager or any other salaried office) for such period and on such terms and conditions as they shall think fit, and subject to the terms and conditions of any agreement entered into in any particular case, may revoke such appointment. Subject to the terms and conditions of any such agreement the appointment of any Director to such office shall terminate if he ceases from any cause to be a Director

- 31 A Managing Director, Deputy or Assistant Managing Director, Manager or other executive officer shall receive such remuneration (either by way of salary, commission, participation in profits or pension or otherwise howsoever, whether similar to the foregoing or not) as the Directors (subject to the terms of the Investment Agreement) may determine.
- 32 Subject to the terms of the Investment Agreement, the Directors on behalf of the Company and without the approval of any resolution of the Company may establish, maintain, participate in and contribute to, or procure the establishment and maintenance of, participation in and contribution to, any pension, superannuation, benevolent or life assurance fund, scheme or arrangement (whether contributory or otherwise) for the benefit of any persons (including Directors, former Directors, officers and former officers) who are or shall have been at any time in the employment or service of the Company or of any company which at the time is or was a subsidiary or a holding company of the Company or another subsidiary of a holding company of the Company (as defined in section 1159 of the 2006 Act) or otherwise associated with the Company or of the predecessors of the Company in business or of any such other company as aforesaid, or for the benefit of the relations, wives, widows, families, connections or dependants of any such persons or for the benefit of any other persons whose service or services have directly or indirectly been of benefit to the Company and their relations, connections or dependants, and the Directors (subject to the terms of the Investment Agreement) on behalf of the Company and without the approval of any resolution of the Company may grant or procure the grant of donations, gratuities, pensions, allowances, including allowances on death, or other payments or benefits of any kind to any of such persons as aforesaid, and the Directors (subject to the terms of the Investment Agreement) on behalf of the Company and without the approval of any resolution of the Company may establish, subsidise, subscribe to or support institutions, associations, clubs, schools, funds or trusts calculated or considered to be for the benefit of any of such persons or otherwise for the advancement of the interests and well-being of the Company or of any such other company or its members, and the Directors (subject to the terms of the Investment Agreement) on behalf of the Company and without the approval of any resolution of the Company may make payments for or towards the insurance of any of such persons. Any such Director or ex-Director may participate in and retain for his own benefit any such donation, gratuity, pension, allowance, payment or other benefit conferred under or pursuant to this Article and the receipt thereof shall not disqualify any person from being or becoming a Director of the Company
- 33 The Directors (subject to the terms of the Investment Agreement) on behalf of the Company and without the approval of any resolution of the Company may establish and contribute to any employees' share scheme (within the meaning of section 1166 of the 2006 Act) for the purchase or subscription by trustees of shares of the Company or of a holding company of the Company and may lend money to the Company's employees to enable them to purchase or subscribe for shares of the Company or of a holding company of the Company, and may establish and maintain any option or incentive scheme whereby selected employees (including salaried Directors and

officers) of the Company are given the opportunity of acquiring shares in the capital of the Company, and may formulate and carry into effect any scheme for sharing the profits of the Company with its employees (including salaried Directors and officers) or any of them. Any Director may participate in and retain for his own benefit any such shares, profit or other benefit conferred under or pursuant to this Article and the receipt thereof shall not disqualify any person from being or becoming a Director of the Company.

34. A resolution in writing signed by all the Directors for the time being in the United Kingdom shall be as effective as a resolution passed at a meeting of the Directors duly convened and held and may consist of several documents in the same form, each signed by one or more of the Directors.
35. All or any of the Directors or any committee of the Directors (such committee having its powers delegated by the Directors in accordance with the terms of the Investment Agreement) may participate in a meeting of the Directors or that committee by means of a conference telephone or any communication equipment which allows all persons participating in the meeting to hear each other and provided two or more Directors are participating as aforesaid such meeting shall be quorate and subject to the provisions of these Articles the meeting shall constitute a meeting of the Directors or a committee of the Directors as the case may be. A person so participating shall be deemed to be present in person at the meeting and shall be entitled to vote or be counted in a quorum accordingly. Such a meeting shall be deemed to take place where the largest group of those participating is assembled, or, if there is no such group, where the chairman of the meeting then is. The word "meeting" in these Articles shall be construed accordingly.

BORROWING AND OTHER POWERS

36

- 36 1 The Directors (subject to the terms of the Investment Agreement) may exercise all the powers of the Company without limit as to amount to borrow and raise money and to accept money on deposit and to grant any security, mortgage, charge or discharge as they may consider fit for any debt or obligation of the Company or which is binding on the Company in any manner or way in which the Company is empowered so to grant and similarly as they may consider fit to enter into any guarantee, contract of indemnity or suretyship in any manner or way in which the Company is empowered so to enter into.
- 36 2 Notwithstanding any other provision of these Articles, no payment can be declared or made by the Company by way of dividend or other distribution, purchase, redemption, reduction or return of shares or capital or by addition to or repayment of any dividend reserve if and to the extent that such payment is prohibited or restricted by the terms of the Finance Documents. No dividends or other distributions payable in respect of shares, whether pursuant to the provisions of these Articles or otherwise, constitutes a debt enforceable against the Company unless permitted to be paid in accordance

with the Finance Documents (but without prejudice to the accrual of interest for late payment in accordance with the terms of these Articles).

- 36 3 Where any dividend or redemption payment is not made because of the provisions of Article 36 2, such dividend will be paid or redemption payment made upon the necessary consent being obtained or the prohibition thereon ceasing to apply

ALTERNATE DIRECTORS

- 37 Any Director (other than an alternate Director) may at any time by writing under his hand and deposited at the Registered Office, or delivered at a meeting of the Directors, appoint any person to be his alternate Director and may in like manner at any time terminate such appointment. If such alternate Director is not another Director, such appointment, unless previously approved by the Directors (subject to the terms of the Investment Agreement), shall have effect only upon and subject to being so approved.
- 38 The appointment of an alternate Director shall terminate on the happening of any event which if he were a Director would cause him to vacate such office or if his appointor ceases to be a Director (retirement at any general meeting at which the Director is re-elected being for such purpose disregarded).
- 39 An alternate Director shall (except when absent from the United Kingdom) be entitled to receive notices of meetings of the Directors and shall be entitled to attend and vote as a Director at any such meeting at which his appointor is not personally present and generally at such meeting to perform all the functions of his appointor as a Director and for the purposes of the proceedings at such meeting the provisions of these Articles shall apply as if he were a Director. An alternate Director's signature to any resolution in writing of the Directors shall be as effective as the signature of his appointor. Every person acting as an alternate Director shall have one vote for each Director for whom he acts as alternate (in addition to his own vote if he is also a Director). An alternate Director shall not (save as aforesaid) have power to act as a Director or be deemed to be a Director for the purposes of these Articles.
- 40 An alternate Director may be repaid expenses and shall be entitled to be indemnified by the Company to the same extent *mutatis mutandis* as if he were a Director but he shall not be entitled to receive from the Company any remuneration except only such proportion (if any) of the remuneration otherwise payable to his appointor as such appointor may by notice in writing to the Company from time to time direct.

INDEMNITY

- 41 Without prejudice to any other indemnity which may from time to time be applicable, a relevant officer of the Company or an associated company shall, subject to Investor Director Consent, be indemnified out of the Company's assets against

- (a) any liability incurred by that officer in connection with any negligence, default, breach of duty or breach of trust in relation to the Company or an associated company,
- (b) any liability incurred by that officer in connection with the activities of the Company or an associated company in its capacity as a trustee of an occupational pension scheme (as defined in section 235(6) of the 2006 Act); and
- (c) any other liability incurred by that officer as an officer of the Company or an associated company,

provided always that this Article does not authorise any indemnity which would be prohibited or rendered void by any provision of the 2006 Act or by any other provision of law

In this Article

- (a) companies are associated if one is a subsidiary of the other or both are subsidiaries of the same body corporate, and
- (b) a "relevant officer" means any Director, former Director, company secretary or former company secretary or other officer of the Company or an associated company (but not its auditor)

INSURANCE

- 42 The Directors, with Investor Director Consent, may decide to purchase and maintain insurance, at the expense of the Company, for the benefit of any relevant officer in respect of any relevant loss

In this Article:

- (a) a "relevant officer" means any Director or former Director, company secretary or former company secretary of the Company or an associated company, any other officer or employee or former officer or employee of the Company (but not its auditor) or any trustee of an occupational pension scheme (as defined in section 235(6) of the 2006 Act) for the purposes of an employees' share scheme of the Company or an associated company, and
- (b) a "relevant loss" means any loss or liability which has been or may be incurred by a relevant officer in connection with that relevant officer's duties or powers in relation to the Company, any associated company (within the meaning of Article 41) or any pension fund or employees' share scheme of the Company or associated company

SCHEDULE 1

- 1 In the Articles to which this forms a schedule the following words and expressions shall, unless the context otherwise requires, bear the following meanings:

"A Ordinary Shareholder" means the holder(s) of A Ordinary Shares,

"A Ordinary Shares" means A ordinary shares of £1 each in the capital of the Company and having the rights and restrictions ascribed to such shares as set out in these Articles,

"B Ordinary Shareholder" means the holder(s) of B Ordinary Shares;

"B Ordinary Shares" means B ordinary shares of £1 each in the capital of the Company and having the rights and restrictions ascribed to such shares as set out in these Articles,

"B Share Subscription Amount" means £1,

"Board" means the board of Directors of the Company from time to time (acting by a majority),

"Business Day" means a day (other than a Saturday or Sunday) on which banks generally are open in London for business,

"Conversion" means the conversion of B Ordinary Shares which is to take place in accordance with Article 7 5,

"Conversion Date" means the date on which a Conversion Event takes place,

"Conversion Event" means the occurrence of a Termination Date in respect of a Leaver;

"Deferred Shares" means the deferred shares in the capital of the Company arising on Conversion with a nominal value of £1 per Deferred Share,

"Directors" means the directors of the Company from time to time and **"Director"** means any one of them,

"Finance Documents" shall have the meaning set out in the Investment Agreement,

"Group" has the meaning set out in the Investment Agreement,

"Investment Agreement" means the investment agreement entered into by the Company, Topco and others on or around the date of adoption of these Articles,

"Investor Consent" has the meaning set out in the Investment Agreement;

"Investor Director Consent" has the meaning set out in the Investment Agreement,

"Leaver" means any of the following to the extent that they have or have ever had (or the Nominee has or has ever had) any legal or beneficial interest in any shares

- (a) any employee, director or consultant (and for the purposes of this definition and related definitions in these Articles a consultant shall include any person employed or engaged by a consultant company which is engaged to provide the services of that person to any member of the Group) of any member of the Group from time to time and who serves or is served with notice of termination of his employment and/or directorships with all members of the Group by whom he is employed or of which he is a Director or the company or person which contracts with a member of the Group to provide his services as a consultant serves or is served with notice of termination of the relevant consultancy agreement,
- (b) any employee, director or consultant who ceases to carry out such role (whether or not his contract of employment or the relevant consultancy agreement is validly terminated and/or whether or not such termination is wrongful or unfair or otherwise) or who ceases to be an employee and/or Director of and/or provider of consultancy services to a member of the Group because such member of the Group ceases to be a member of the Group and does not continue (or is not immediately re-employed/re-appointed) as an employee and/or Director of and/or provider of consultancy services to the Company or any such member of the Group;
- (c) any person (other than holders of A Ordinary Shares) who dies or becomes bankrupt;

Any reference in these Articles to a Leaver shall include any person who becomes entitled to a Leaver's interest in any shares by transmission following the death or bankruptcy of a Leaver;

"LIBOR" means the rate (expressed as an annual percentage rate) at which Sterling deposits in an amount equal to the total amount subscribed (including any premium paid thereon) for the B Ordinary Shares in issue at the relevant date of measurement is offered in the London Inter Bank Market by prime banks at or about 11 am on the first Business Day of the relevant B Share Dividend Period for the same period and amount in Sterling,

"Nominee" shall have the meaning set out in the Investment Agreement,

"Ordinary Shares" means the A Ordinary Shares and the B Ordinary Shares taken together as one class,

"Preference Shares" means preference shares of £0 000005 each in the capital of the Company and having the rights and restrictions ascribed to such shares as set out in these Articles,

"Prescribed Rate" means the rate equal to LIBOR;

"Sale" means the acquisition by any person (or persons who in relation to each other are acting in concert) of not less than 50% of the issued share capital of the Company with Investor Consent, excluding an acquisition undertaken in connection with a reorganisation of the Group,

"Termination Date" means in respect of any Leaver (whether or not such termination or cessation was lawful, wrongful, unfair or otherwise) the date upon which notice of cessation of the contract of employment or appointment as Director of the relevant Leaver terminated or the consultancy agreement was given by any member of the Group or the Leaver (or if there is no such notice date, the date on which the Leaver ceased to be employed by or a Director of or provide consultancy services to the relevant member of the Group);

"Topco" means Caelius Topco Limited, a company incorporated in England and Wales (registered number 09965297),

"Topco Articles" means the articles of association of Topco from time to time,

"Topco A Shareholder" means a holder of A ordinary shares in Topco, and

"Voting Rights" means the right to receive notice of, attend (in person or by proxy), speak (in person or by proxy) and vote (in person or by proxy) at general meetings of the Company

SCHEDULE 2**DEFERRED SHARES**

The rights and restrictions attaching to the Deferred Shares are as follows

1. Income/Voting/Capital

The Deferred Shares shall not be entitled to any dividend or distribution, whether pursuant to these Articles or otherwise. Any such Deferred Shares shall not entitle the holders thereof to receive notice of or to attend or vote at any general meeting of the Company by virtue of their holdings of any such Deferred Shares. The holder of each Deferred Share has the right to receive, after all share capital on the Shares in issue has been repaid, £1 for every £100,000,000,000 of capital returned.

2. Purchase

Subject to the provisions of the Acts, the Company shall be entitled to repurchase the Deferred Shares for a sum of £1 in aggregate payable to each holder of such Deferred Shares.